

The Plastics Manufacture, Sale And Usage Rules, 1999

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Union of India - Act

The Plastics Manufacture, Sale And Usage Rules, 1999

UNION OF INDIA

India

The Plastics Manufacture, Sale And Usage Rules, 1999

Rule THE-PLASTICS-MANUFACTURE-SALE-AND-USAGE-RULES-1999 of 1999

Published on 2 September 1999

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The Plastics Manufacture, Sale And Usage Rules, 1999

Published vide, S.O. 705(E), dated 2.9.1999, published in the Gazette of India, Ext., Pt. II, Section 3(ii), dated 2.9.1999.

10.

/535

In exercise of the powers conferred by clause (viii) of sub-section (2) of section 3 read with section 25 of the Environment (Protection) Act, 1986, the Central Government hereby notifies the rules for the manufacture and use of recycled plastics, carry bags and containers.

1.

Short title and commencement .-(1) These rules may be called The Plastics Manufacture, Sale and Usage Rules, 1999.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

[Application

.-The provisions of rules 4 and 8 shall not apply to the manufacture of carry bags exclusively for export purpose, against an order for export received by the owner or occupier of the concerned manufacturing unit.

3.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Environment (Protection) Act, 1986 (29 of 1986

);

(b)

"carry bags" means plastic bags which have a self carrying feature commonly known as vest type bags or any other feature used to carry commodities such as "D" punched bags; as illustrated in the Annexure to these rules;

(c)

"commodities" includes articles such as vegetables, fruits, pharmaceuticals and the like;

(d)

"container" means flexible or rigid containers made of virgin plastics or recycled plastics with or without lid used to store, carry or dispense commodities;

(e)

"food-stuffs" means ready to eat food articles and food products, fast food, processed or cooked food in liquid, powder, solid or semi-solid form;

(f)

"registration" means registration of units manufacturing carry bags and containers made of virgin or recycled plastics with the concerned State Pollution Control Board or Pollution Control Committee as the case may be;

(g)

"vendor" means a person who sells food stuffs packed or stored in plastic carry bags or containers.]

4.

[Restriction on manufacture, sale, distribution and use of virgin and recycled plastic carry bags and recycled plastic containers

.-(1) No person shall manufacture, stock, distribute or sell carry bags made of virgin or recycled plastic bags which are less than 8 x 12 inches (20 x 30 cms) in size and which do not conform to the minimum thickness specified in rule 8.

(2)

No vendor shall use carry bags made of recycled plastic for storing, carrying, dispensing or packaging of foodstuffs.

(3)

No vendor shall use containers made of recycled plastic for storing, carrying, dispensing or packaging of foodstuffs.

Explanation .-For the purposes of this rule, the minimum weight of 50 carry bags made of virgin or recycled plastics shall be 105 gms. plus or minus 5% variation and the carry bags of larger sizes shall be of proportionate increase in weight.]

5.

Conditions of manufacture of carry bags and containers made of plastics .-Subject to the provisions of rule 4, any person may manufacture carry bags or containers made of plastics if the following conditions are satisfied, namely:-

(a)

Carry bags and containers made of virgin plastic shall be in natural shade or white;

(b)

Carry bags and containers made of recycled plastic and used for purpose other than storing and packaging foodstuffs shall be manufactured using pigments and colourants as per IS:9833:1981 entitled "List of pigments and colourants for use in plastics in contact with foodstuffs, pharmaceuticals and drinking water".

6.

Recycling .-Recycling of plastics shall be undertaken strictly in accordance with the Bureau of Indian Standards specification: IS:14534:1998 entitled "The Guidelines for Recycling of Plastics".

7.

Marking/codification .- [Subject to the provisions of rules 4 and 5, manufacturers of]recycled plastic carry bags having

printing facilities shall code/mark carry bags and containers as per Bureau of India Standard Specification: IS:14534:1998 entitled "The Guidelines for Recycling of Plastics" and the end product made out of recycled plastics shall be marked as "recycled" alongwith the indication of the percentage of use of recycled material. Other manufacturers, who do not have printing facilities, shall comply with the condition within one year of publication of these rules. Manufacturers shall print on each packet of carry bags as to whether these are made of "recycled material" or of "virgin plastic".

8.

Thickness of carry bags .-The minimum thickness of carry bags made of virgin plastics or recycled plastics shall not be less than 20 microns.

9.

Self-regulation by certain persons .-Without prejudice to the provisions contained in rule 3, the Plastics Industry Association, through their member units, shall undertake self-regulatory measures.

10. [Grant of registration for manufactures

.(1) Every occupier manufacturing carry bags or containers of virgin plastic or recycled plastic or both shall make an application in Form I appended to these rules to the State Pollution Control Board or Pollution Control Committee of the Union Territory concerned for grant of registration or renewal of registration for his unit within four months from the date of publication of the Recycled Plastics Manufacture and Usage (Amendment) Rules, 2003 in the Official Gazette.

(2)

On or after the commencement of the Recycled Plastics Manufacture and Usage (Amendment) Rules, 2003, no person shall manufacture carry bags or containers irrespective of its size or weight unless the occupier of the unit has registered the unit with the State Pollution Control Board/Pollution Control Committee prior to the commencement of production.

(3)

The State Pollution Control Board or Pollution Control Committee shall not issue and renew a registration certificate of a unit unless that unit meets the norms prescribed under rules 5, 6, 7 and 8 of these Rules and also possess a valid consent under the Water (Prevention and Control of Pollution) Act, 1974 (

6 of 1974

) and the Air (Prevention and Control of Pollution) Act, 1981 (

14 of 1981

) as per the requirements laid down by the State Pollution Control Board or Pollution Control Committee.

(4)

Every State Pollution Control Board or State Pollution Control Committee shall grant registration within thirty days of receipt of application complete in all respects.

(5)

The registration granted under this rule shall, unless revoked suspended or cancelled earlier, be valid for a period of three years.

(6)

Every application for renewal of registration shall be made in the Form I appended to these rules at least sixty days before the expiry of the validity of registration.]

ANNEXURE [See rule 2(b)]

Shape Of Bags

FORM I

[See rules 10(1) and 10(4)]

Application For Registration Of A Unit For Manufacture Of Plastic Carry Bags And Containers

From.....

.....

.....(Name and full address of the occupier)

To

The Member-Secretary,

.....Pollution Control Board/Pollution Control Committee

.....

.....

Sir,

I/We hereby apply for registration under rule 10 of the Plastics Manufacture, Sale and Usage Rules, 1999.

Part A

General

1.

(a) Name of the unit and location of activity

(b) Address of the unit

(c) Registration required for manufacturing of :

(i)

Carry bag virgin

(ii) Carry bag recycled

(iii) Containers virgin

(iv) Container recycled

(d) Manufacturing capacity

(e) In case of renewal of Registration previous Registration number and date

2.

(a) Is the unit registered with DCSSI or Department of Industries of the State Government/Union Territory Administration?

(b) If yes, attach a copy.

3.

(a) Total capital invested on the project

(b) Year of commencement of production

4.

(a) List and quantum of products and by-products

(b) List and quantum of raw materials used

5.

Furnish a flow diagram of manufacturing process showing input and output in terms of products and waste generated including for captive power generation and de-mineralized water

6.

Minimum sizes of carry bags to be manufactured. (in any case it should not be less than 8? x 12?)

7.

Status of compliance with rules 5,6,7

and 8

Part B

Pertaining To Liquid Effluent And Gaseous Emissions

8.

(a) Does the unit have a valid consent under the Water (Prevention and control of Pollution) Act, 1974 (6 of 1974

)

If yes, attach a copy

(b) Does the unit have a valid consent under the Air (Prevention and Control of Pollution) Act, 1981 (14 of 1981

)

If yes, attach a copy

Part C

Pertaining To Waste

9.

Solid Wastes:

(a) Total quantum of generation

(b) Mode of storage within the plant

(c) Provision made for disposal

Place.....

Date.....

Signature.....

Designation.....

FORM II

[See rule 10(3)]

Certificate Of Registration For The Manufacture Of Plastic Carry Bags And Containers

File No.....

Dated.....

To

.....

.....

.....

Ref: Your Application No....., dated.....seeking registration for manufacturing of carry bags and containers

TheState Pollution Control Board or Pollution Control Committee after examining the application, hereby certifies that.....(Name & Address of the Unit) has been registered as a unit manufacturing.....

This certificate of registration shall be valid for a period of three years unless revoked or suspended.

The certificate is granted subject to the following conditions :

(i)

(ii)

(iii)

Date.....

Place.....

State Pollution Control Board/Pollution Control Committee

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